Louisa County Water Authority
Board of Directors
November 13, 2024

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. David Kies; Mr. Robert Hardy; Mr. Robert Morgan; Mr. Tom Filer; Mr. Byron Wilson

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Ms. Danielle Mychajlonka; Human Resources Manager; Mr. Chris Compton, Maintenance Manager; Mr. Roger Henry, Louisa Town Council (elect); Mr. Danny Crawford, Louisa Town Council (elect); Ms. Patricia Smith, County Attorney; Mr. Dale Mullen, Whiteford, Taylor & Preston, LLC (outside legal counsel); Mr. Manning Woodward, Louisa County Board of Supervisors

A. Call to Order

Chairman Foster called the meeting to order at 6:01 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. The General Manager asked to 1) add a Short Notice Item – Northeast Creek Reservoir Dam work; 2) to move Item 10 to closed session under VA Code Section §2.2-3711 (A)(8), consultation with legal counsel employed or retained by a public body regarding specific legal matters requiring the provision of legal advice by such counsel; and 3) to move Section I - Personnel – Review of Deputy General Manager Applications to closed session under VA Code Section 2.2-3711(A)(1): For the discussion and consideration of personnel matters including the discipline, appointment, assignment, performance and salaries of specific appointees and employees. Mr. Hardy made a motion to adopt the agenda as amended. The motion was seconded by Mr. Kies and carried 7-0.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. SEPTEMBER 18, 2024 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT –OCTOBER 2024
B. APPROVAL OF DISBURSEMENTS – OCTOBER 2024
C. CONSTRUCTION FUND – OCTOBER 2024
D. FIRST QUARTER INCOME & EXPENSE STATEMENTS (SUMMARY & DETAIL)
E. INVESTMENTS
F. REGIONAL SEWAGE EXPENSE & REVENUE
G. NORTHEAST CREEK: PAID CONNECTION FEES AND ALLOCATION
H. ZION CROSSROADS: PAID CONNECTION FEES AND ALLOCATION

The Board reviewed the Consent Agenda, Treasurer's Report and Quarterly Reports. The General Manager stated that on page 4 of the agenda packet, the loss on investment should have been in red to identify a deduction in the fund balance.

Mr. Hardy asked what made up the Total Construction Fund Balances in the first two columns of the Construction Fund account. The General Manager stated that the first column was the total construction revenues received from the County since the account was opened in the mid-1990s and the second column was the total expenditures. She stated that she would rename those columns and the total line to better reflect the purpose of those columns.

Mr. Smith asked if there was a projection of when funds would be moved to a Virginia Investment Pool account, since the balance in the O & M Checking account seemed high. The General Manager stated that $99,645 had recently been moved to the Sewer Account for the sewer connection for the middle school addition. Additionally, changing banks has taken longer than projected. Ensuring Wells Fargo accounts are completely closed and changing all the ACH transfers has taken much longer than expected.

Upon completion of the review, Mr. Kies made a motion to approve the Consent Agenda, Treasurer's Report and Quarterly Reports. The motion was seconded by Mr. Kies and carried 7-0.

E. Old Business

4. UPDATE – NEW BRIDGE WWTP

A. EFFLUENT FLOW METER RELOCATION PROPOSAL / ESTIMATE

The Board reviewed the proposal from Smart Design to relocate the flow meter in the New Bridge collection system. The original installation was in a manhole that does not receive all the flow from the New Bridge collection system. Wastewater staff received incorrect information from the previous operators of the facilities at New Bridge on the collection system. The original installation error was discovered by the Maintenance Department. The new location will require additional electrical and excavating work to be completed. Those costs are included in the quote (confirmed). The estimated cost of relocating the flow meter is $16,230.

F. New Business

5. RIGHT-OF-WAY CLEARING

The original Request for Proposal was thrown out due to significant differences in the proposals received. A new Request for Proposal was advertised that more narrowly defined scope and included the suggestions provided by the Board. The suggestions included the following:

- Section II Statement of needs / scope of services does not include ongoing maintenance of reclaimed rights-of-way
- The RFP does not specify bushhogging activities
- Section II Statement of needs / scope of services paragraph G requires the contractor to sign in with LCWA upon arrival. The General Manager explained that the thought process was to have the contractor notify Authority staff to provide a way to control costs and notify staff that they are onsite for safety purposes
- The RFP doesn't designate between reclaiming and maintaining right-of-way
- There was some discussion regarding if the contract should be billed by distance and not an hourly basis
- Section II Statement of needs / scope of services Section A-2 calls for chips to be hauled to a designated location on the LCWA campus. The General Manager stated that more than likely the chips would be taken to the land fill

Only one proposer responded to the second Request for Proposal. S & K Enterprises, LLC proposed right-of-way reclamation and ongoing maintenance at $8,000/mile. The General Manager reminded the Board that Arbor Pro of Virginia, LLC proposed $1,589.90/mile in 2021.

The Board discussed the options for right-of-way reclamation and ongoing maintenance. The General Manager asked Chris Compton, Maintenance Manager to provide any feedback to the Board. Chris Compton stated that even if the work was outsourced, his men would need to be there to identify the infrastructure, check on infrastructure and make repairs. Outsourcing the reclamation and maintenance of the right-of-ways did not change the fact that his men would still be there while the clearing crew was working. He also stated that the maintenance staff would know and be able to mark Miss Utility tickets if they knew those remote parts of the system.

Upon completion of the discussion Mr. Hardy made a motion to purchase the trailer, purchase the truck, lease the skid steer and talk to General Services to determine if we can borrow their equipment to begin the process. The motion failed due to a second.

After further discussion, Mr. Hardy made a motion to purchase a truck with the proper towing capacity and a trailer that was adequate for moving a skid steer and related attachments. The motion was seconded by Mr. Kies and carried 7-0.

Mr. Hardy made a motion to direct the General Manager to investigate renting a skid steer with related attachments (mulching head) and to determine if it would be possible to borrow a truck and trailer from General Services to begin the right-of-way clearing. The motion was seconded by Mr. Kies and carried 7-0.

Mr. Wilson asked for safety training before any of the right-of way work begins. He also asked for a determination of the cost difference between the cost provided by ArborPro and S & K Enterprises, LLC. And finally, he asked for a schedule for the reclamation and maintenance work.

6. NORTHEAST CREEK WATER TREATMENT PLANT – NANOFILTRATION SITE VISIT

The Board reviewed a proposal from Wigen Water Technologies for a site visit to the Northeast Creek Water Treatment Plant. The pressure in Nanofiltration skid #1 is elevated and normal cleaning and a deep cleaning process has not brought the pressure down. If the pressure cannot be brought down, the replacement of the nano-filters in skid #1 may be necessary.

Cody Langridge, Water Operation Manager has been in contact with Wigen several times discussing this and different issues and they have been helpful, but he believes a site visit would be more beneficial in his efforts to save the nano-filters in skid #1. The cost of the site visit is $14,655.

7. XYLEM - BY-PASS PUMP PURCHASE QUOTE

The Board reviewed the quote provided by Xylem for a by-pass pump in the amount of $64,110.25. In the past few months, both wastewater treatment plants needed to rent a by-pass pump when the influent pump stations went down due to equipment failures. Staff feels that the need for a pump is becoming more necessary. The General Manager stated that in both incidents when a by-pass pump was needed, the pump rental company was there within two hours. The pumps were set up and ready if/when the need arose. If purchased, the pump would sit for long periods of time between use but would be available for use quicker than two hours if needed.

8. FY2026 RATE DISCUSSION

A. LOUISA COUNTY WATER AUTHORITY – SERVICE POLICIES
B. LCWA COST / REVENUE PER 1,000 GALLONS FY2024
C. MEMORANDUM – WATER / SEWER RATES

The Board reviewed the Louisa County Water Authority – Service Policies, LCWA Cost / Revenue per 1,000 Gallons for FY2024 and the Memorandum provided by the General Manager breaking down costs per facility. The General Manager stated that this is the beginning of the rate review process and discussion to determine if a rate increase would be needed for FY2026. The General Manager recommended small incremental increases every year to prevent long periods of no increases followed by large increases.

The Board looked over the information provided. The General Manager corrected the Zion Combined (Water & Wastewater) Total Revenue Received from $1,145,684 to $1,465,684, giving Mr. Hardy credit for discovering the error. Mr. Hardy volunteered to separate the Service Policies and rates and have the draft documents ready for review at the December 2024 Board of Directors meeting.

9. NORTHEAST CREEK WTP – SLUDGE VAC SYSTEM MUD-VALVE REPLACEMENT

The mud-valves between the floc basins and the sed basins are not operational. We had a contractor look at them to receive a quote for replacing them. When the contractor saw that they were imbedded in concrete, they declined to provide a quote. We asked the engineer to request a price from WACO to replace the valves when the sludge-vac system is installed this winter. The change order in the amount of $46,366.98 to replace the mud-valves was reviewed by the Board. The General Manager reminded the Board that the bid for this work exceeded the funding made to the County and Authority funds would need to be used to complete the job by early spring. A funding request for FY2026 was made to recoup the cost exceedance.

Upon completion of the review, a motion to approve Change Order #1 was made by Mr. Smith. The motion was seconded by Mr. Wilson and carried 7-0.

WACO stated that the delivery of equipment and materials to the WTP would start the week of November 11, 2024. They plan to do the overnight shutdown of the basins on 12/18 and afterwards they will be bringing Basin 1 back online and leaving Basin 2 offline to complete the concrete and mechanical work on that side. The plant will likely run 24-hours a day for a couple of weeks while the basin work is being completed.

Matt with WACO has been informed that staff would prefer all deliveries to show up no later than 3 pm. When WACO is working on site, they will likely be working longer hours – until 4 pm or 5 pm. We are considering ways for them to access the facility when staff leaves around 4 pm.

The schedule provided indicates completion in April / May of 2025.

10. INDUSTRIAL PARK SANITARY SEWER OVERFLOW

This item was moved to closed session.

G. Reports

H. General Manager's Report

● The General Manager reported no exceedances at the New Bridge facility for the third month in a row.

● The Louisa Regional WWTP failed their toxicity sampling, but the sampling has been redone with hopefully better results. Staff believe that an increase in alum feed for phosphorous removal or a potent load of septage could have been the cause. Treatment adjustments were made prior to the second round of sampling.

● Progress continues with the James River Water Project. The contractor has been at the Ferncliff Water Treatment Plant testing the signal from the river. Additional updates:

- The Bremo Road crossing is complete.
- The Gale Hill Road crossing will be completed this week.
- The Rt.6 jack-n-bore will be completed this winter.
- Two crews are currently installing pipe, that will be reduced to one crew this winter.
- The raw water pump station excavation, approximately 40,000 sf. will begin the first quarter of 2025.
- Archeological work continues to be conducted on three fields at the pump station site. Work will commence on the additional two fields once the first field is completed.
- The archeologists are providing incremental updates on the progress. When the field work is complete an executive summary will be completed. A much larger report will be completed taking up to a year, but this will not impact the construction timeline or work needed to complete the project.
- All wetland / stream work has been completed.

● The new truck ordered in July has been received and is in the body shop now. We should take delivery in 1 – 2 weeks.

● The Zion Crossroads WWTP permit was completed and took effect on November 1, 2024.

● **October levels**: At the end of October 2024, the static well levels are down 36 feet from the end of September 2024 levels. From October 2023 to October 2024, the static well levels are down 101 feet.

The average well depth is down 3 feet from the end of September and down 8 feet from October 2023.

The rolling annual average is down 1 foot from the end of September and down 3 feet from October 2023.

As of November 12, 2024, the Department of Environmental Quality Drought website is indicating normal conditions exist for precipitation, groundwater, reservoir levels and stream flow.

The US Drought Map indicates abnormally dry conditions for the County of Louisa, with severe drought conditions being reported in neighboring counties to the east.

● The current past due listing is down to $5,235.96 from the past due listing provided in the General Manager's Report, which reported the past due balance of $9,276.69.

● The Utility Standards are being internally reviewed by the engineer. Sometime in late-November or in December Town of Louisa and Authority Staff will be meeting to go over the Utility Standards to capture any new standards needed.

● LCWA office staff has provided all the requested information for the Zion Crossroads Sewer Collection Capacity Study update. Mary is working on providing plan sets to the engineer so they can begin to build the model.

● The New Bridge WWTP upgrade – 1) the draft short-term evaluation for the lagoon system is complete except for finalizing some of the pricing and determining what equipment / upgrades can be used in the upgraded facility; and 2) the Preliminary Engineering Report is approximately 50% complete.

● The only items to be completed for Spring Creek #1 & #2 are a final inspection with the engineers, an inspection with VDH, the pipe coatings and the final piece of tying in the communications.

● On December 12, 2024, the Emergency Response Plan Table-Top Exercise will be performed. Representatives from DCR, VDEM, County Administration, Fire/EMS, engineers, Sherrif's Department, VDOT and others will be in attendance.

● Chris Compton is working to acquire prices for waterline installations at Ferncliff Industrial Park. 1) to include all lots; 2) to run a line to Patriot Aluminum; or 3) to bore or open-cut Ferncliff Drive to connect Patriot Aluminum.

I. Committees

A. PERSONNEL – REVIEW OF DEPUTY GENERAL MANAGER APPLICATIONS

This item was moved to closed session.

J. Short Notice Items

NORTHEAST CREEK RESERVOIR DAM WORK

The General Manager shared a proposal received from Bander-Smith for the Northeast Creek Reservoir Dam to have the riser to outfall pipe joint repaired, re-install the inlet screen on intake #2 and mobilization at a cost of $26,500. This work is required by the Department of Conservation and Recreation. Christian Goodwin, County Administrator has approved the work for the Bowlers Mill Dam work included in the proposal.

Mr. Wilson made a motion to proceed with the work at the Northeast Creek Reservoir Dam at a cost of $26,500. The motion was seconded by Mr. Smith and carried.

K. Closed Session

CLOSED SESSIONS FOR CONSULTATION WITH LEGAL COUNSEL: VA. CODE SECTION 2.2-3711(A)(7): MEETINGS FOR CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN AN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

CLOSED SESSIONS FOR UNANNOUNCED PROJECTS: VA. CODE SECTION 2.2-3711(A)(5): THIS SECTION PERMITS CLOSED MEETINGS FOR DISCUSSION CONCERNING PROSPECTIVE OR EXPANDING BUSINESS OR INDUSTRY WHEN NO PREVIOUS ANNOUNCEMENT HAS BEEN MADE.

CLOSED SESSION FOR DISCUSSION AND CONSIDERATION OF PERSONNEL MATTERS: VA. CODE SECTION 2.2-3711(A)(1): FOR THE DISCUSSION AND CONSIDERATION OF PERSONNEL MATTERS INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOUEES.

CLOSED SESSION FOR CONSULTATION WITH LEGAL COUNSEL: VA CODE SECTION §2.2-3711 (A)(8), CONSULTATION WITH LEGAL COUNSEL EMPLOYED OR RETAINED BY A PUBLIC BODY REGARDING SPECIFIC LEGAL MATTERS REQUIRING THE PROVISION OF LEGAL ADVICE BY SUCH COUNSEL.

Mr. Hardy made a motion to close the regular open meeting and immediately reconvene in closed session. The motion was seconded by Mr. Kies and carried 7-0.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 8:09 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion carried 7-0.

Next meeting date - The next business meeting is scheduled for December 11, 2024.

Mr. Manning Woodward updated the Board on meetings conducted with the Town of Mineral and the Town of Louisa. He stated that going forward the Towns and County planned to meet quarterly. He also added that he would make sure the Authority General Manager was included in the next meeting.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Hardy made a motion to adjourn at 8:19 pm. The motion was seconded by Mr. Wilson and carried 7-0. .

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY